

Approved as to
form only:

Date: 9/19/18

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION TERMINATING THE AGREEMENT BETWEEN THE CITY OF CHEYENNE, WYOMING, AND THE CHEYENNE ANIMAL SHELTER/SERVICES FOR ANIMAL CONTROL AND ANIMAL SHELTER SERVICES."

WHEREAS, on June 18, 2018, the City of Cheyenne, Wyoming (City), entered into an Agreement with the Cheyenne Animal Shelter/Services (CAS) to provide both animal control and animal shelter services; and

WHEREAS, the City provides \$505,000.00 to CAS to provide these services; and

WHEREAS, CAS is directed by a volunteer Board of Directors, which in turn hires a President/CEO to oversee and manage daily operations; and

WHEREAS, a recent highly-publicized incident involving an animal attack on a staff member, and a subsequent training exercise involving the same canine led to both the canine's euthanasia and allegations of animal abuse against the CAS President/CEO; and

WHEREAS, the CAS Board investigated the matter, and held at least two lengthy executive sessions to discuss the matter, and finally decided to suspend the President/CEO; and

WHEREAS, the Governing Body of the City of Cheyenne has determined the CAS Board has failed to take timely, appropriate action to resolve this situation.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, that the City Attorney be directed to give sixty (60) days' notice to CAS of its intent to terminate the Agreement between the City and CAS pursuant to Section 8(k) of the Agreement.

PRESENTED, READ, AND ADOPTED this _____ day of _____, 2018.

MARIAN J. ORR, MAYOR

(S E A L)

ATTEST:

CAROL INTLEKOFER, CITY CLERK